



Respecting Privacy

"Privacy is not something that I am merely entitled to; it is an absolute pre-requisite."

—Marilyn Monroe

Privacy refers to how much physical and mental space we desire from others and how much of the same they desire from us. While it is good to have a professional bonding for a team to gel together, it is also equally important to maintain a reasonable distance with our colleagues in a work environment. What is 'reasonable' is debatable and is the subject of discussion for this chapter.

There are two dimensions of personal privacy—*personal space* and *informational privacy*. Personal space refers to the physical distance you should maintain with a colleague, in terms of where you sit or stand, your gestures and what you can and cannot do. Informational privacy on the other hand is about what you can and cannot say (or if looked another way, what information you need to or need not to give about yourself). In addition to personal privacy, there is also organizational privacy which is about safeguarding the relevant company information.

36.1 WHY ARE PRIVACY ISSUES IMPORTANT?

A few things have happened in the recent decades which have pushed privacy issues to center-stage. First, the Western style professionalism is now being embraced by most corporate houses in India and central to such a professional life is a clear separation of one's private life by keeping it away from the office. It also calls for keeping a clear physical distance from your colleagues. Next, with rampant

globalization comes a huge exposure to prevailing sensibilities and norms regarding privacy in other cultures. You have no choice but to learn, respect and be sensitive to them if you want to do business with those cultures. Thirdly, now there are definite legal implications for non-compliance of privacy laws and therefore, you should stay current on any legal developments in your client countries. Such legal aspects of privacy have come into even greater focus with the maturation of e-business and after the telecom revolution.

Legal or ethical, it makes good business sense to follow the international etiquette on privacy issues with our global partners. Given how difficult it is to pull off international business deals, the last thing we want is a silly thing like our partner's privacy worries to come in the way of business. That's why we would like to elevate 'respecting privacy' to a soft skill. By 'respecting' we mean not only the general awareness of international norms and practices, but also specific sensitivity to the person standing in front. Such a skilled employee will be able to offer a comfort zone to the other person to communicate in and an office-full of such professionals will create a non-threatening atmosphere for business transactions. Such persons will also be very careful with their own personal data and make sure they are well-guarded. They will be aware of security threats and data integrity issues. Not just that, they will also be very careful about their organization's private and proprietary information.

In this chapter we will walk you through the various steps of gaining such respect toward others' privacy and towards your organization's privileged information. We will look at privacy of physical space first and then follow it up with informational privacy issues. Even if you already have an intuitive feel for appropriate behaviour when it comes to privacy, you may still pick up a point or two from these pages which talk about how you succeed in this privacy based workplace, which leads us to organizational privacy (as distinguished from personal privacy). The perception of what constitutes each of these dimensions and what is right and what is wrong as far as privacy is concerned is highly culture-dependent. In particular, there is a significant gap between the Indian and US cultures in this aspect. In this chapter, we will highlight some of these differences and recommend that you err on the side of conservatism.

36.2 PHYSICAL SPACE

In general, there is a greater sensitivity to physical space in the USA than in India. Here are some examples:

- ▶ Americans, by and large, stand farther from you when they talk to you (may be because geographically their country is large and they are used to a lot of space.)
- ▶ A lot of Europeans shake hands with their colleagues almost every day, whereas with Americans it is a remote 'hello' or 'hi'—the handshake is reserved only when you first meet someone or when you meet them after a long gap or when congratulations are in order.

- ▶ In restaurants Americans tend to sit far from other guests and almost never share a table with strangers. In India, it is not uncommon to find people sharing restaurant tables (may be because there are not enough tables in many restaurants).
- ▶ Even in crowded places, Americans tend to protect their private space (and respect others' personal space).
- ▶ While it is common in India to find four people sharing three seats or six people squeezing into a compact car (by 'adjusting', to use a common Indian term), you will never find this in America.
- ▶ When Americans go to a restaurant, they usually 'go Dutch', in the sense that each person pays for himself. In India, it is very common that 'someone takes you for a treat'.
- ▶ An Indian does not mind an occasional back slap or doesn't think too much of putting his hand over his colleague's shoulder, but people from some other cultures, like the Americans, may not appreciate such a gesture.
- ▶ Even while driving, Americans maintain a 'space' around their car.

In short, the Americans are highly protective of their privacy and *personal space*—much more so than many other cultures in the world. Here are some of the common ways people err and violate this personal space and our suggestions on how to avoid such mistakes.

Maintaining physical distance: In India, it is common to find people walking very close to each other and putting their hands over another's shoulder. This is not done in the USA. You have to literally maintain at least a distance of an arm's length with your colleagues. Avoid unnecessary physical contact. No literal pat on the back (only figurative ones); no hands over shoulders.

Respecting your colleague's office space: If your colleague has an office (not a cubicle), then the space behind the desk, where he is sitting is part of his personal space. Never cross over to that side of the table. In Indian terms, the table is 'the *Lakshman Rekha*' that marks your boundary of how far you can go. Also, if your colleague is not there, do not take the liberty of entering into his office and sitting and waiting for him to come back.

Not borrowing or requesting to share your colleague's personal belongings: In India, it is quite common for someone to borrow his colleague's car or a motor cycle for short (or even long) rides. This is usually not done in the USA. Americans guard their personal belongings as a part of their physical space. As an extension of this, never use the phone on your colleague's desk without seeking his permission first.

Not using his computer: As a corollary to the above two points, never fiddle around with your colleague's computer or mobile phone for that matter. Resist the temptation to peek through his open e-mail or whatever is on his screen or the text messages on the phone—especially if your colleague is not around. Nowadays, computers are truly *personal* and no one would like someone else to peep through them.



"Our CEO Mr. Srivastav is very particular about his privacy....."

Fig. 36.1

Not visiting his home, unless invited specifically: In India, it is common to cold call on your colleague's home on a Sunday evening with your family. This is considered 'a pleasant surprise' and is not frowned at. This is simply a no-no in the US culture. Never knock on anybody's door without notice.

36.3 INFORMATIONAL PRIVACY

With a large amount of personal data circulating in the cyberspace and open to attacks from lurking predators, you now need to know enough about cyber-security and how to protect everyone's confidential data from such attacks.

Just what personal information is considered private and needs to be kept under wraps? We give a list of such items below and we would like to emphasize that this list is by no means complete. Also, just like personal space, the limits of this are very culture-dependent. You may be surprised at some of the items that have made the list and are therefore, considered highly personal topics. So the next time you have a conversation with your colleague (or even a candidate for a job interview) and it touches on his or her personal life, make sure the topic is not off-limits due to privacy considerations. Be especially careful when discussing such matters with your foreign counterparts. Don't put others in an awkward situation. Some topics not to be touched upon:

- **Date of birth, age:** These are big taboo topics and any discussion of these in the office should be avoided. In fact, it is illegal to ask about these things in interviews you conduct for US companies. A typical resumé (and job interview) in

India dwells upon age and date of birth but in much of the world (especially in the USA), this is a no-no. And contrary to the popular belief that only women like to keep their age secret, even men do not want to advertise their age (and leave themselves vulnerable to age bias and other possibilities). Don't even ask indirect questions about their age ('who was the prime minister when you were in college?'), because nobody wants to 'date' themselves and give clues about their history that you can use to back-calculate their age.

- ▶ **Marital status, romantic life, children and family, sexual orientation:** You do not ask about the marital status of someone or how many children someone has or their living arrangements (whether they are living with their parents or children, etc.). In India, we don't think twice about asking if someone is married. But if you asked a foreign colleague, they may surprise you by saying that they don't want to answer the question. So, don't stick your foot in your mouth by asking such questions—especially, soon after being introduced to them. Likewise, unless you have a close personal rapport with your colleagues, do not probe into what their children (or brothers and sisters, boyfriend/girlfriend) are doing. If your colleague keeps mentioning their family or spouse or siblings/children in the course of the conversation, it may not be out of place to ask natural questions about them in a 'small talk' type of manner. (See the Chapter 35 on small talk.) But you certainly do not want to come across as being overly inquisitive.
- ▶ **Salary, property, jewellery, financial transactions and stock market activities:** Your salary details are confidential. So if your colleague at the neighboring desk asks you 'what is your take-home pay this year?' you really don't have to answer. Similarly, information about your incentive bonus, raises, travel allowances and so forth are personal data. So are data about your financial life—cost of your apartment, stock market profits, insurance details and so on. On the flip side, do not attempt to find out such details about your colleagues. Again, in India, the day after an annual performance review is over, everyone knows the other persons' raise and bonus and that is the topic for 'big talk' (if we can coin a term as an opposite of small talk!). Annual performance reviews and other personal meetings with your managers are also confidential events and you don't have to—and should not—share the details with each other.
- ▶ **Phone numbers and addresses:** We already mentioned that you should not ask your foreign partners for their personal mobile or home phone numbers. Neither should you ask them for their home addresses. If you are abroad in their city and they invite you to their home, then get to know their address. But otherwise, the only window to them is through the office.
- ▶ **Health parameters:** How much they weigh, waist size, sugar level, blood pressure numbers, whether they have any physical challenges and so on are confidential information too. Even if you know that your colleague has high blood pressure, you don't make him uncomfortable by asking him how high it is and try to extract a number out of him.

- ▶ **Health conditions of family members:** When your colleague or his relatives are in the hospital or have a health condition, don't go 'What is the matter with your mother in law? What is she suffering from?' The state of health and the nature of any illness someone is suffering from are also private topics and you do not ask pointed questions about them to someone.
- ▶ **Religious orientation:** Your colleague's religious practices, religious rites, personal habits (like eating habits based on religion) are also in the private realm. Don't try to find out such details and worse still, pass judgement about it.
- ▶ **Educational qualification, resumés:** Although it may be common knowledge, don't discuss such things with your colleagues ('How did you do in your first year college mathematics course?').
- ▶ **Marks, grades, annual performance review details:** Test grades and exam results are considered very, very private data in the USA and most other countries and you don't ask each other for your marks. Interestingly, there are cultural differences between India and other countries in this regard too. Here in India, university exam results are announced over public websites and all you need is a university 'roll number'. Not only can you find out the marks and grades that you have obtained but of your entire class, because the roll numbers of students in a class are assigned sequentially.
- ▶ **Reasons for their absence from work yesterday:** 'So, what happened to you yesterday? You didn't come to work?' is an innocuous enough question. But your colleague doesn't have to answer it (or he could say 'something suddenly cropped up' and leave it at that).
- ▶ **Itinerary, plans and schedules:** Don't embarrass your colleagues by asking them to outline any of their plans—even vacation plans. They don't have to share their innermost ideas with you or consult you on their plans. In India, it is quite common to share vacation plans with your colleagues—even if they are not very close to you.
- ▶ **Political orientation and views:** Your colleague's political views, affiliations and voting choices are his own and he need not reveal them to you. Neither does he have to be drawn into a political discussion with you and others, if he is disinclined. This contrasts with the Indian ethos where politics is one of the main topics of discussion and talk at any time.
- ▶ **Don't volunteer unsolicited help:** Volunteering to help someone is generally a good idea, but don't impose your help on people, unsolicited. Let the person in need actually request help. Some people who are really in need of help may prefer to struggle and get over the hump by themselves, without any external assistance. It may offend them and embarrass them if you offered unsolicited help. If you can't wait to help, ask them 'May I help you?' and only if they say 'yes', extend your helping hand.

The above discussion is moot if your colleague thinks he is a good personal friend of yours and does not mind confiding in you or sharing details about his personal life. In which case, nothing prevents you from discussing any topic in depth and you can

go as far as he is comfortable. But the default behaviour is not to broach any of the above topics with your colleagues, especially with people whom you are barely getting to know and even more particularly, with people from other cultures. Let them keep their firewall, just like how you should keep yours.

Sometimes, others' private and confidential information may come your way unsolicited, through leaks and the grapevine. In such cases, go on with life as if you didn't hear anything. Don't be instrumental in spreading it even more. And finally, discussing technical and work-related matters with colleagues—even foreign ones—is a safe bet and does not typically violate any privacy norm and so, stick with it when in doubt!.

36.4 HOW TO LIVE IN A PRIVACY-BASED WORKPLACE

Get over the misconception that there is nothing wrong about getting other people's personal information: The biggest challenge to respecting privacy comes from ignorance about privacy and its legal aspects. One simply needs a quick lesson on the matter—about what is considered to be the public domain and what is private, what information about your colleagues is protected and off-limits, and how you can be sensitive to the personal space of the other person. You may think it is a part of good friendship to share information about each other's bonuses or health conditions, But that is not how relationships work at the workplace. Don't be offended if your colleague does not share his personal space with you. Don't try to find out his private details one way or the other—especially by mining office records or trawling personal information. By doing such things you are not only being disrespectful of others' privacy, but may actually be violating some laws.

Use the correct way of building profiles on people at work: This is a corollary of the above point. Some people tend to take the wrong approach to building a mental 'profile' of their colleagues. They start with numerical and parametric details first—age, educational qualification, salary level, family background, etc. and then go on to add other things. Instead, in a modern work environment, you should start with the professional description and attributes of the other person and build around it. Instead of saying Rakesh Lal is a thirty two year old, second year test engineer with a mechanical engineering degree pulling in six *lakhs* a year, you should think of him as a test engineer first, who is good at reliability testing and designing elaborate quality metrics and then add to this profile as necessary. It really should not matter to you how old he is or what his cholesterol numbers are.

Give evasive or curt answers to curious cats: This is still another corollary of our first point. Some people at work can be overly curious about others' affairs, to the point that they become annoying. In which case, if you want to protect your privacy, it is okay to give evasive answers or simple, curt responses. 'If you don't mind, I don't want to talk about it' is an appropriate response. Be very careful about the persons

who might keep pestering you over and over. Don't relent or be intimidated into giving personal information.

Let the topics evolve naturally, don't force them: In the initial stages of your relationship-building with your colleague, you should stick to just non-sensitive topics ('What did you do over the weekend?') and confine your conversation to technical/office matters or small talk. Once the relationship becomes stronger, personal details may also figure in the conversation. If it does, let that happen naturally, on its own. Don't force it.

Let the other person open up as much as he or she feels comfortable with. Lob a gentle question 'Heard your mother-in-law is in the hospital. Hope it isn't anything to worry about?' If the response is lukewarm, ('Yes, she is doing much better. Should be discharged today.') drop the matter. If he is forthcoming, hear him out, but don't probe him with question after question. When you do ask questions try to ask them in a neutral, non-judgemental, matter-of-fact way, rather than looking nosy.

Leave the other person(s) alone if that is their wish: You will meet all kinds of people at work. Some of them will be habitual introverts with a virtual 'do not disturb' sign on them. You should leave them alone, except for the occasional courtesies. Some others would like to get into their shells from time to time to concentrate on their work, for personal reasons and so on. And yet others may want to be left alone with another colleague or a small group of co-workers. In which case, don't invite yourself in.

Never assault other people's sound space: Some people talk very loudly in public by habit and some others just to attract attention. The office is a public place, so speak softly, especially in today's open office environment. Likewise, tone down your phone ringtones, desist from playing music loudly (use ear phones) and keep your phone voice to a manageable decibel level. In a quiet office environment, never talk on your cell phone loudly. If you get a call that you have to answer, excuse yourself from the office, go to the corridor and take the call.

Be careful about your personal information: Organize and secure your personal data, especially your identity-defining data like your passport or PAN or social security number details, driving license information, employment-related details and so on. Next, keep your financial details in order. Make up appropriate usernames and passwords to protect your transactions and keep changing them often for safety. Keep phone numbers of your banks and other agencies handy so that you can contact them in case your confidential data is compromised.

Be alert and be paranoid about your personal data falling into the wrong hands in cyberspace. Be on top of scams and unauthorized attempts to penetrate your cyber firewall. As much as possible, keep your professional and private lives distinct. Be very careful about logging into office accounts from public computers and likewise, reaching a public domain website or e-mail site through the office computer.

36.5 ORGANIZATIONAL PRIVACY AND PROPRIETARY INFORMATION

Not just people, even organizations have their privacy and proprietary information. Just because you are privy to some of it, don't assume that everyone knows it. And don't ever be tempted to pass it around, even among your own colleagues, because such information may be privileged and perhaps given only to people on a 'need-to-know' basis. You must remember that there are active parties interested in getting your organization's business secrets and you will have to be doubly vigilant to safeguard those secrets.

Don't discuss business details with family members: Since you spend so many hours in the office, it is often tempting to come up with a war story for the benefit of your folks at home and talk about what happened at work. This is fine, as long as you don't inadvertently talk about how your organization missed a deal or how much money they are losing in another project. Proprietary information coming out of your office should be off-limits even to your personal friends outside work.

Don't spread information about company decisions, project status, etc.: These are very sensitive information. You don't know how many people are interested in such details like the names of your suppliers, whether you are half-way or three-quarters through your project, your company's latest product portfolio and when they are going to be released. A certain amount of leak may occur anyway, given how interconnected organizations are these days. But do your part in being tight-lipped about such information. Be wary of vendors and outsiders trying to get information about each other and trying to find where they are with respect to you.

Don't discuss company's future plans: Only some parts of your organization's strategy and tactical response are in the public domain. Your organization's comprehensive strategic plans and their specifics are again, privileged information that may only be known to selected employees. Be protective of such information as well, if you are privy to it.

View customer data as sacred: If you interact with end customers, you may be handling a lot of their private data, in which case, handle them with extreme care. You must remember that most customers have a solid trust in your organization and that is why they are handing over any of their personal data to a third party like you—their credit card numbers, addresses, phone numbers, etc. You have to put them at ease and make sure they don't have even a shred of doubt about their data falling into the wrong hands.

Protect your company's intellectual properties: Be cognizant of any patents, copyrights or technical secrets that you may come across in your organization during the course of your work. Such intellectual properties are major assets for any organization. Do not reveal any of it to anyone—don't even give hints about it. What chemicals go

into your insulating layer in circuit fabrication or how exactly you deposit it and so on may be company secrets and should stay within the company, that too only with people who do such fabrication day in and day out.

Guard privileged information: You may be an engineer in R and D. But you might still be privy to some information about another function in your organization, such as sales. For example, you may know that the sales department is planning to have a big promotion in the Mumbai region next month. But you must remember that it is the duty (and the protocol) of the sales people to publicize it. You are not supposed to talk about it under any circumstances just because you know about it. Don't wear the wrong hat and talk out of turn—even if you are the only one who knows that information in a crowd. Similarly, production figures, product yields, quality issues, profit margins and so on are also confidential information and should be under gag.

36.6 IN SUMMARY

In today's global workplace, you have to be privacy-savvy at many levels. To begin with, you should display simple courtesies about respecting the other person's privacy and be aware of their personal firewall and need for personal space. This is especially important if the other person is from a different culture with a slightly different notion of privacy. It is absolutely important to create a pleasant and relaxed business climate where the other party's privacy concerns are put to rest and you gain their confidence and trust.

Equally important is to care for and safeguard your customer's personal data and your organization's business secrets and intellectual properties. And finally, if you can extend your skill to cover cyber-security and protection of everyone's data in the cyber-space, that will give you an even greater edge at the workplace.

You should not have the notion that you can earn the goodwill of someone by sharing a secret or intruding into his privacy. The hints given in this chapter serve as guidelines on the optimum distance (both literally and figuratively) to maintain with your colleagues and to strike the right balance between being cordial and not sounding impersonal.